

# Arvindra Yadav @ Arvind Kumar v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 19 January 2024 · 2024:AHC-LKO:5623-DB · WRIT - C No. 524 of 2024 · **Recovery citation quashed; seven days to reply, then final assessment.**

## HEADNOTE

A recovery citation issued without a final assessment order and without an opportunity of hearing under paragraph 6.8 of the Electricity Supply Code, 2005, was quashed. The consumer was allowed seven days to reply to the provisional assessment, after which the authority may pass a final assessment in accordance with law and proceed only if the occasion arises.

## FACTUAL SUMMARY

Arvindra Yadav alias Arvind Kumar challenged, before the Allahabad High Court at Lucknow, a recovery citation dated 30 November 2023 issued by opposite party no. 4 for the electricity department. He complained that the citation had been issued though no final assessment order had been passed and he had received no hearing under paragraph 6.8 of the Electricity Supply Code, 2005. Counsel for respondent nos. 2 and 3 accepted that the citation preceded any final assessment. A copy of the provisional assessment was handed to his counsel in Court.

## REUSABLE CONSTRUCTIONS

1. A recovery citation issued before the final assessment order, and without an opportunity of hearing under paragraph 6.8 of the Electricity Supply Code, 2005, is liable to be quashed. ¶ 3-6
2. On that quash, the consumer may be given a short time to reply to the provisional assessment, after which the authority may pass a final assessment in accordance with law and proceed only if the occasion arises. ¶ 5-6

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.8

Recovery citation before final assessment and hearing

#### HOLDING

A recovery citation issued without a final assessment order and without an opportunity of hearing under paragraph 6.8 of the Electricity Supply Code, 2005, is unsustainable. The citation dated 30.11.2023 was quashed. The petitioner may reply to the provisional assessment within seven days, and respondent no. 2 may then pass a final assessment in accordance with law after considering those objections and proceed only if the occasion arises. ¶ 3-6

## PRINCIPLE TAGS

**para-6.8-non-compliance-vitiates-assessment-and-recovery** The recovery citation of 30.11.2023 was quashed because it was issued without a final assessment order and without a hearing under paragraph 6.8. ¶ 3-6

**6.8-procedure-mandatory** Respondents conceded that recovery had issued before any final assessment, and the Court required the paragraph 6.8 sequence of reply and final assessment to be completed before further recovery. ¶ 4-6

**fresh-objection-under-clause-6.8** The petitioner was permitted to submit a reply to the provisional assessment within seven days, to be considered before any final assessment. ¶ 5-6

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — MERITS AND QUANTUM OF THE PROVISIONAL ASSESSMENT AND OF ANY FINAL ASSESSMENT OF LIABILITY**

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